

SURROGATE'S COURT OF THE STATE OF NEW YORK
COUNTY OF _____

PROBATE PROCEEDING,

WILL OF:

a/k/a _____

Deceased

_____ —X

To the Surrogate's Court, County of _____

It is respectfully alleged:

1. (a) The name, citizenship, domicile (or, in the case of a bank or trust company, its principal office) and interest in this proceeding of the petitioner are as follows:

Name: _____
(First) (Middle) (Last)

Domicile or Principal Office: _____
(Street and Number)

(City, Village or Town) (State) (Zip Code)

Mailing Address: _____
(If different from domicile)

Citizen of: _____

Interest (s) of Petitioner (s): [Check one] ☐ Executor (s) named in decedent's Will
☐ Other (Specify) _____

1. (b) The proposed Executor ☐ is ☐ is not an attorney.

[NOTE: A sole Executor-Attorney must comply with 22 NYCRR 207.16(e)]

1. (c) The proposed Executor ☐ is ☐ is not the attorney-draftsperson, a then-affiliated attorney or employee thereof.

[NOTE: An attorney-draftsperson, a then-affiliated attorney or employee thereof must comply with SCPA 2307-a]

1. (d) The proposed Executor ☐ is ☐ is not a convicted felon nor is he/she otherwise ineligible, pursuant to SCPA 707 to receive letters. If the proposed Executor is a convicted felon, submit a copy of the Certificate of Relief from Civil Disabilities.

2. The name, domicile, date and place of death, and national citizenship of the above-named decedent as follows:

(a) Name: _____

(b) Date of death _____

(c) Place of death _____

(d) Domicile: Street _____

City, Town, Village _____

County _____ State _____

(e) Citizen of: _____

3. The Last Will, herewith presented, relates to both real and personal property and consists of an instrument or instruments dated as shown below and signed at the end thereof by the decedent and the following attesting witnesses:

(Date of Will) (Names of All Witnesses to Will)

(Date of Codicil) (Names of All Witnesses to Codicil)

(Date of Codicil) (Names of All Witnesses to Codicil)

Filing Fee Paid \$ _____
_____ Certs \$ _____
_____ Certs \$ _____
\$ _____ Bond, Fee: \$ _____
Receipt No: _____ No: _____

PETITION FOR PROBATE AND:

- ☐ Letters Testamentary
☐ Letters of Trusteeship
☐ Letters of Administration c.t.a.
☐ Temporary Administration

File No. _____

- a. - Spouse (husband/wife).
- b. - Child or children and/or issue of predeceased child or children.
[Must include marital, nonmarital, adopted, or adopted-out of child under DRL Section 117]
- c. - Mother/Father.
- d. - Sisters and/or brothers, either of the whole or half blood, and issue of predeceased sisters and/or brothers (nieces/nephews, etc.)
- e. - Grandparents. [Include maternal and paternal]
- f. - Aunts and/or uncles, and children of predeceased aunts and/or uncles (first cousins).
[Include maternal and paternal]
- g. - First cousins once removed (children of predeceased first cousins). [Include maternal and paternal]

[If the propounded will purports to revoke or modify an inter vivos trust or any other testamentary substitute, list the names, relationships, domicile and addresses of the trustee and beneficiaries affected by the will in subparagraphs (a) and (b) below. **Submit trust agreement**]

[illegible]

Name and Relationship	Domicile Address and Mailing Address	Description of Legacy, Devise or Other Interest, or Nature of Fiduciary Status

7. (a) The names and domiciliary of all substitute or successor executors and of all trustees, guardians, legatees, devisees, and other beneficiaries named in the Will and/or trustees and beneficiaries of any inter vivos trust designated in the propounded Will other than those named in Paragraph 6 herewith are as follows:

Name and Relationship	Domicile Address and Mailing Address	Description of Legacy, Devise or Other Interest, or Nature of Fiduciary Status

(b) All such legatees, devisees and other beneficiaries who are persons under disability are as follows:
[Furnish all information specified in NOTE below]

Name and Relationship	Domicile Address and Mailing Address	Description of Legacy, Devise or Other Interest, or Nature of Fiduciary Status

[NOTE: In the case of each infant, state (a) name, birth date, relationship to decedent, domicile and residence address, and the person with whom he/she resides, (b) whether or not he/she has a court-appointed guardian (if not, so state), and whether or not his/her father and/or mother is living, and (c) the name and residence address of any court-appointed guardian and the information regarding such appointment. In the case of each other person under a disability, state (a) name, relationship to decedent, and residence address, (b) facts regarding his disability including whether or not a committee, conservator, guardian, or any other fiduciary has been appointed and whether or not he/she has been committed to any institution, and (c) the names and addresses of any committee, person or institution having care and custody of him/her, conservator, guardian, and any relative or friend having an interest in his/her welfare. In the case of a person confined as a prisoner, state place of incarceration and list any person having an interest in his/her welfare. In the case of unknowns, describe such person in the same language as will be used in the process.]

8. (a) No beneficiary under the propounded will, listed in Paragraph 6 or 7 above, had a confidential relationship to the decedent, such as attorney, accountant, doctor, or clergy person, except: **[Enter "NONE" or indicate the nature of the confidential relationship]**.

(b) No persons, corporations or associations are interested in this proceeding other than those mentioned above.

9. (a) To the best of the knowledge of the undersigned, the approximate total value of all property constituting the decedent's gross testamentary estate is greater than \$ _____ but less than \$ _____
Personal Property \$ _____ Improved real property in New York State \$ _____
Unimproved real property in New York State \$ _____
Estimated gross rents for a period of 18 months \$ _____

(b) No other testamentary assets exist in New York State, nor does any cause of action exist on behalf of the estate, except as follows: **[Enter "NONE" or specify]**

10. Upon information and belief, no other petition for the probate of any will of the decedent or for letters of administration of the decedent's estate has heretofore been filed in any court.

WHEREFORE your petitioner (s) pray (s) that process be issued to all necessary parties to show cause why the Will and the Codicil (s) set forth in Paragraph 3 and presented herewith should not be admitted to probate; (b) that an order be granted directing the service of process, pursuant to the provisions of Article 3 of the S.C.P.A., upon the persons named in Paragraph (6) hereof whose names or whereabouts are unknown and cannot be ascertained, or who may be persons on whom service by personal delivery cannot be made; and (c) that such Will and Codicil (s) be admitted to probate as a Will of real and personal property and that letters issue thereon as follows: [Check and complete all relief requested.]

- ☐ Letters Testamentary to _____
- ☐ Letters of Trusteeship to _____ f/b/o _____
_____ f/b/o _____
_____ f/b/o _____
- ☐ Letters of Administration c.t.a. to _____
and that petitioner (s) have such other relief as may be proper.

Dated: _____

1. _____ 2. _____
(Signature of Petitioner) (Signature of Petitioner)

(Print Name) (Print Name)

3. _____
(Name of Corporate Petitioner)

(Signature of Officer)

(Print Name and Title of Officer)

COMBINED VERIFICATION, OATH AND DESIGNATION

[For use when petitioner is an individual]

STATE OF _____)

COUNTY OF _____) ss.:

The undersigned, the petitioner named in the foregoing petition, being duly sworn, says:

1. VERIFICATION: I have read the foregoing petition subscribed by me and know the contents thereof, and the same is true of my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.

2. OATH OF ☐ EXECUTOR ☐ ADMINISTRATOR c.t.a. ☐ TRUSTEE as indicated above: I am over eighteen (18) years of age, and I will well, faithfully and honestly discharge the duties of Fiduciary of the goods, chattels and credits of said decedent according to law. I am not ineligible, pursuant to SCPA 707, to receive letters and will duly account for all moneys and other property that will come into my hands.

3. DESIGNATION OF CLERK FOR SERVICE OF PROCESS: I hereby designate the Clerk of the Surrogate's Court of _____ County, and his/her successor in office, as a person on whom service of any process, issuing from such Court may be made in like manner and with like effect as if it were served personally upon me, whenever I cannot be found and served within the State of New York after due diligence used.

My domicile is : _____
(Street Address) (City/Town/Village) (State) (Zip)

(Signature of Petitioner)

(Print Name)

On _____, 20 _____, before me personally came

to me known to be the person described in and who executed the foregoing instrument. Such person duly swore to such instrument before me and duly acknowledged that he/she executed the same.

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Signature of Attorney: _____

Print Name: _____

Firm Name: _____ Tel No.: _____

Email: _____

Address of Attorney: _____

COMBINED CORPORATE VERIFICATION, CONSENT AND DESIGNATION

[For use when a petitioner to be appointed is a bank or trust company]

STATE OF _____)

COUNTY OF _____) ss.:

I, the undersigned, a _____ of
(Title)

(Name of Bank or Trust Company)

a corporation duly qualified to act in a fiduciary capacity without further security, being duly sworn says:

1. VERIFICATION: I have read the foregoing petition subscribed by me and know the contents thereof, and the same is true of my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.

2. CONSENT: I consent to accept the appointment as ☐ Executor ☐ Administrator c.t.a ☐ Trustee under the Last Will and Testament of the decedent described in the foregoing petition and consent to act as such fiduciary.

3. DESIGNATION OF CLERK FOR SERVICE OF PROCESS: I designate the Chief Clerk of the Surrogate's Court of _____ County, and his/her successor in office, as a person on whom service of any process issuing from such Surrogate's Court may be made, in like manner and whenever one of its proper officers cannot be found and served within the State of New York after due diligence used.

(Name of Bank or Trust Company)

BY _____
(Signature)

(Print Name and Title)

On _____, 20 _____, before me personally came _____, to me known, who duly swore to the foregoing instrument and who did say that he/she resides at: _____ and that he/she is a _____ of _____ the corporation/national banking association described in and which executed such instrument, and that he/she signed his/her name thereto by order of the Board of Directors of the corporation.

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Signature of Attorney: _____

Print Name: _____

Firm Name: _____ Tel No.: _____

Email: _____

Address of Attorney: _____

COUNTY OF _____

— — — — — X

WILL OF

PRELIMINARY LETTERS TESTAMENTARY

(See SCPA 1412)

a/k/a

File # _____

Deceased.

— — — — — X

1. The proposed preliminary executor (s) is/are _____ and is/are designated as executor (s) in the Will of the above named decedent dated _____ (together with Codicil (s) dated _____) and duly filed with the court.
2. The person (s) who would have a right to letters testamentary pursuant to Section 1412.1 is/are:
[Enter "NONE" or specify name and interest]

3. Preliminary letters are requested for the following reasons:

4. Probate is expected to be completed by: _____
5. A contest ☐ is ☐ is not expected.
6. The testamentary assets of decedent's estate are estimated as follows: [describe and state value; annex _____ schedule if space is insufficient]

Personal Property:

Total Personal Property: \$ _____

Real Property:

Total Real Property: \$ _____

18 months rent, if applicable:

Total of 18 month's rent: \$ _____

7. The liabilities of this estate are:

8. By provision in the propounded will, the applicant(s) [is/are] [are not] required to file a bond or other security for the performance of his/her/their duties.

Your applicant (s) respectfully request the issuance to _____

of preliminary letters testamentary upon qualifying.

Dated: _____

(Applicant)

(Applicant)

OATH & DESIGNATION OF PRELIMINARY EXECUTOR

STATE OF _____)

COUNTY OF _____) ss.:

I, the undersigned, _____ being duly sworn say:

1. OATH OF PRELIMINARY EXECUTOR: I am over eighteen (18) years of age and a citizen of the United States; I am an executor named in the Will described in the foregoing petition and will well, faithfully and honestly discharge the duties of preliminary executor and duly account for all money or property which may come into my hands. I am not ineligible to receive letters.

2. DESIGNATION OF CLERK FOR SERVICE OF PROCESS: I hereby designate the Clerk of the Surrogate's Court of _____ County, and his/her successor in office, as a person on whom service of any process issuing from such Surrogate's Court may be made, in like manner and with like effect as if it were served personally upon me whenever I cannot be found and served within the State of New York after due diligence used.

My domicile is : _____

(Street Address)

(City/Town/Village) (State)

(Zip)

(Signature of Petitioner)

(Print Name)

On _____, 20_____, before me personally came _____, to me known to be the person described in and who executed the foregoing instrument. Such person duly swore to such instrument before me and duly acknowledged that he/she executed the same.

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Signature of Attorney: _____

Print Name: _____

Firm Name: _____ Tel No.: _____

Email: _____

Address of Attorney: _____

NOTE: Each Preliminary Executor must complete a combined Oath & Designation of Preliminary Executor.

CONSENT AND DESIGNATION OF CORPORATE PRELIMINARY EXECUTOR

STATE OF _____)

COUNTY OF _____) ss.:

I, the undersigned, a _____ of

(Title)

(Name of Bank or Trust Company)

a corporation duly qualified to act in a fiduciary capacity without further security, being duly sworn, says:

1. CONSENT: I consent to accept the appointment as Preliminary Executor under the Last Will and Testament of the decedent described in this application and consent to act as such fiduciary.

2. DESIGNATION OF CLERK FOR SERVICE OF PROCESS: I designate the Chief Clerk of the Surrogate's Court of _____ County, and his/her successor in office, as a person on whom service of any process issuing from such Surrogate's Court may be made, in like manner and whenever one of its proper officers cannot be found and served within the State of New York after due diligence used.

(Name of Bank or Trust Company)

BY _____

(Signature)

(Print Name and Title)

On _____, 20_____, before me personally came _____

_____, to me known, who duly swore to the foregoing instrument and who did say that he/she resides at _____

and that he/she is a _____ of _____

the corporation/national banking association described in and which executed such instrument, and that he/she signed his/her name thereto by order of the Board of Directors of the corporation.

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Signature of Attorney: _____

Print Name: _____

Firm Name: _____ Tel No.: _____

Email: _____

Address of Attorney: _____

SURROGATE'S COURT OF THE STATE OF NEW YORK

COUNTY OF

— — — — — X

PROBATE PROCEEDING,

WILL OF

a/k/a

Deceased.

— — — — — S

STATE OF

COUNTY OF

)

ss.:

The undersigned witness, being duly sworn, deposes and says:

(1) I have been shown [check one]

☐ the original instrument dated _____,

☐ a court-certified photographic reproduction of the original instrument dated _____,

purporting to be the last Will and Testament/Codicil of the above-named decedent.

(2) On the date indicated in such instrument (under the supervision of an attorney), I saw the decedent subscribe the same at the place where decedent's signature appears, and I heard the decedent declare such instrument to be his/her last Will and Testament/Codicil.

(3) I thereafter signed my name to such instrument as a witness thereto at the request of the decedent, and I saw the other witness (es) _____ sign his/her/their names (s) at the end of such instrument as a witness thereto.

(4) At the time the decedent subscribed and executed such instrument, the decedent was to the best of my knowledge and belief upwards of 18 years of age, and in all respects appeared to be of sound and disposing mind, memory and understanding, competent to make a will, and not under any restraint.

(5) The decedent could read, write and converse in the English language, and was not suffering from defects of sight, hearing or speech, or any other physical or mental impairment, which would affect his/her capacity to make a valid will. The purported instrument was the only copy of said Will/Codicil executed on that occasion, and was not executed in counterparts.

(6) I am making this affidavit at the request of _____.

(Witness Signature)

(Print Name)

(Street Address)

(Town/State/Zip)

Sworn before me this _____

day of _____, 20_____

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

[Note: Each witness must be shown either the Original Will or a Court-Certified Reproduction thereof. The Notary Public subscribing to this affidavit may Not be a party or witness to the Will.]

SURROGATE'S COURT OF THE STATE OF NEW YORK

COUNTY OF

— — — — — X

PROBATE PROCEEDING,

WILL OF

WAIVER OF PROCESS:

CONSENT TO PROBATE

a/k/a

File # _____

Deceased.

— — — — — X

To the Surrogate's Court, County of _____

The undersigned, being of full age and sound mind, residing at the address written below and interested in this proceeding as set forth in paragraph 6a of the petition, hereby waives the issuance and service of citation, in this matter and consents that the court admit to probate the decedent's Last Will and Testament dated _____, 20 _____ (and codicils, if any, dated _____), a copy of each of which testamentary instrument had been received by me, and that

☐ Letters Testamentary issue to _____

☐ Letters of Trusteeship issue to _____
of the following trusts: _____

Dated Signature

Street Address Relationship

Print Name Town/State/Zip

STATE OF)
COUNTY OF) ss.:
On _____, 20 _____, before me personally appeared _____

to me known and known to me to be the person described in and who executed the foregoing waiver and consent and duly acknowledged the execution thereof.

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Signature of Attorney: _____

Print Name: _____

Firm Name: _____ Tel No.: _____

Email: _____

Address of Attorney: _____ P-4 (10/96)

PROBATE CITATION _____ File No. _____

SURROGATE'S COURT - _____ COUNTY

CITATION

THE PEOPLE OF THE STATE OF NEW YORK,

By the Grace of God Free and Independent

TO _____

A petition having been duly filed by _____, who is domiciled at _____

YOU ARE HEREBY CITED TO SHOW CAUSE before the Surrogate's Court, _____ County, at _____, New York, on _____ 20 _____

at _____ o'clock in the _____ noon of that day, why a decree should not be made in the estate of _____

lately domiciled at _____

admitting to probate a Will dated _____

(a Codicil dated _____ (a Codicil dated _____

a copy of which is attached, as the Will of _____

deceased, relating to real and personal property, and directing that

☐ Letters Testamentary issue to _____

☐ Letters of Trusteeship issue to _____

☐ Letters of Administration c.t.a. issue to _____

(State any further relief requested)

Dated, Attested and Sealed

Hon. _____

Surrogate

_____, 20 _____

Chief Clerk

Attorney for Petitioner

Telephone Number

Address of Attorney

[NOTE: This citation is served upon you as required by law. You are not required to appear. If you fail to appear it will be assumed you do not object to the relief requested. You have a right to have an attorney appear for you.]

SURROGATE'S COURT OF THE STATE OF NEW YORK

COUNTY OF _____

— — — — — X

PROBATE PROCEEDING,
WILL OF

NOTICE OF PROBATE
(SCPA 1409)

a/k/a

a/k/a

Deceased.

— — — — — X

File # _____

Notice is hereby given that:

1. The Will dated _____ (and Codicil dated _____)
(and Codicil dated _____) of the above named decedent,
domiciled at _____
County of _____, New York, has been/will be offered for probate in the Surrogate's Court for
the County of _____.

2. The name (s) of proponent (s) of said Will is/are _____

whose address(es) is/are _____

3. The name and post office address of each person named or referred to in the petition who has not been served or has not appeared, or waived service of process, with a statement whether such person is named or referred to in the will as legatee, devisee, trustee, guardian or substitute or successor executor, trustee or guardian, and as to any such person who is an infant or an incompetent, the name and post office address of a person upon whom service of process may be made on behalf of such infant or incompetent, is as follows:

NAME	MAILING ADDRESS	NATURE OF INTEREST OR STATUS
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

(USE ADDITIONAL SHEETS IF NECESSARY)

Date _____, 20____

[Note: Complete Affidavit of Mailing. If serving infant 14 years of age or older, list and mail to infant as well as parent or guardian.]

Name of Attorney Telephone Number

Address of Attorney P-6 (10/96)

AFFIDAVIT OF MAILING NOTICE OF PROBATE

STATE OF _____)
COUNTY OF _____) ss.:
_____, residing at _____

being duly sworn, says that he/she is over the age of 18 years, that on the _____
day of _____, 20 _____, he/she deposited in the post office box regularly maintained by the
government of the United States in the _____ of
_____, State of New York, a copy of the foregoing Notice of Probate contained in a securely closed postpaid
wrapper directed to each of the persons named in said notice at the places set opposite their respective names.

Sworn to before me this

_____, 20 _____ Signature _____

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Signature of Attorney: _____

Print Name: _____

Firm Name: _____ Tel No.: _____

Email: _____

Address of Attorney: _____

COUNTY OF _____

— — — — — X

PROBATE PROCEEDING,

WILL OF

a/k/a

Note: File Proof of Service at least 2 days before
return date. State clearly date, time and place of
service and name of person

(Uniform Rule 207.7 (c) [NYCRR])

AFFIDAVIT OF SERVICE OF CITATION

Deceased.

— — — — — X

File # _____

STATE OF NEW YORK _____)

COUNTY OF _____)

ss.:

_____ of _____,

being duly sworn, says that I am over the age of eighteen years; that I made personal service of the citation
herein dated _____, 20_____, and a copy of the Will/Codicil on each person named below, each of whom
deponent knew to be the person mentioned and described in said citation, by delivering to and leaving with each of them
personally a true copy of said citation and Will/Codicil, as follows:

_____ description: sex _____, color of skin _____,
color of hair _____, approximate age _____, weight _____, height _____, at
o'clock ____ .m. on the day of _____ 20_____,
at _____

_____ description: sex _____, color of skin _____,
color of hair _____, approximate age _____, weight _____, height _____, at
o'clock ____ .m. on the day of _____ 20_____,
at _____

_____ description: sex _____, color of skin _____,
color of hair _____, approximate age _____, weight _____, height _____, at
o'clock ____ .m. on the day of _____ 20_____,
at _____

That none of the aforesaid persons is in the military service as defined by the Act of Congress known as the "Soldiers' and
Sailors' Civil Relief Act of 1940" and in the New York "Soldiers' and Sailors' Civil Relief Act."

Sworn to before me this

_____ day of _____, 20 _____

Signature

Print Name

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Signature of Attorney: _____

Print Name: _____

Firm Name: _____ Tel No.: _____

Email: _____

Address of Attorney: _____

SURROGATE'S COURT OF THE STATE OF NEW YORK

COUNTY OF _____

____ _ X

PROBATE PROCEEDING,

WILL OF

a/k/a

APPLICATION TO DISPENSE WITH

TESTIMONY OF ATTESTING WITNESS

(SCPA 1405)

Deceased.

____ _ X

File No. _____

STATE OF NEW YORK _____)

COUNTY OF _____)

ss.:

_____, being duly sworn, deposes and says:

The testimony of _____ an attesting witness to the
Will/Codicil of the above-named decedent, dated _____, _____, offered for probate, cannot be
obtained because of ☐ death ☐ absence ☐ disability ☐ inability to locate.

[Explain in detail and add additional affidavit if necessary]

Wherefore it is respectfully requested, pursuant to SCPA 1405, that the testimony of said witness be dispensed with.

Sworn to before me this

_____ day of _____, 20 _____

Signature

Print Name

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

SURROGATE'S COURT OF THE STATE OF NEW YORK

COUNTY OF _____

— — — — — X

PROBATE PROCEEDING,

WILL OF

ORDER DISPENSING

WITH TESTIMONY OF

ATTESTING WITNESS

a/k/a

Deceased.

— — — — — X

File No. _____

Upon reading and filing the foregoing affidavit which states why the attesting witness therein named is unable to appear in this Court, it is

ORDERED that the testimony of _____,
as an attesting witness to the instrument offered for probate herein, is hereby dispensed with in this probate proceeding.

Dated _____, 20 _____

Surrogate

P-8 (10/96)

SURROGATE'S COURT OF THE STATE OF NEW YORK

COUNTY OF _____

____ _ X

PROBATE PROCEEDING,

WILL OF

AFFIDAVIT PROVING

HANDWRITING

a/k/a

Deceased.

____ _ X

File No. _____

STATE OF NEW YORK _____)

COUNTY OF _____)

ss.:

_____, being duly sworn, deposes and says:

1. My address is: _____
2. I was well-acquainted with ☐ the testator ☐ an attesting witness to the testator's Will/Codicil.
3. I am familiar with the manner and style of the testator's/witness's handwriting, having often seen him/her write his/her signature and having seen his/her signature on documents I know to have been signed by him/her.
4. The signature subscribed at the end of the instrument in writing now produced and shown to me, purporting to be the testator's Last Will and Testament dated _____, _____, is the signature of and is the handwriting of _____.

Sworn to before me this

_____ day of _____, 20 ____

Signature

Print Name

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Name of Attorney: _____

Tel No.: _____

Address of Attorney: _____

SURROGATE'S COURT OF THE STATE OF NEW YORK
COUNTY OF

— — — — — X

PROBATE PROCEEDING,
WILL OF

RENUNCIATION OF NOMINATED
EXECUTOR and/or TRUSTEE

a/k/a

Deceased.

— — — — — X

File No. _____

I, _____
domiciled at (or, in the case of a bank or trust company, its principal office) _____,
nominated as an executor and/or trustee in the (Will) (Codicil) of _____,
dated _____, 20____, late of _____ in the County of _____ New York.
hereby renounce the appointment and all right and claim to letters testamentary and/or letters of trusteeship of and under
the (Will) (Codicil) or to act as executor and/or trustee thereof.

I hereby waive the issuance and service of a citation in the above entitled matter, and consent that the Will dated
(and Codicil dated _____, 20____) (and Codicil dated _____, 20____),
a copy of which has been received by the undersigned, be forthwith admitted to probate. I hereby consent
that Letters ☐ Testamentary ☐ of Administration c.t.a. ☐ of Trusteeship issue to _____
without the necessity of furnishing a bond. If a bond is furnished, I hereby waive and release all right to make any claim on
the bond in any capacity whatsoever.

(Signature)

(Name of Corporation)

(Print Name)

(Name of Officer)

Date: _____

STATE OF NEW YORK _____)
COUNTY OF _____)

ss.:

On _____, 20____, before me personally appeared **[INDIVIDUAL]** ☐ _____
to me known and known to me to be the person described in and who executed the foregoing renunciation and duly
acknowledged the execution thereof. **[CORPORATION]** ☐ _____ to me
known, who duly swore to the foregoing instrument and who did say that he/she resides at _____
and that he/she is a _____ of _____
the corporation/national banking association described in and which executed such instrument; and that he/she signed
his/her name thereto by order of the Board of Directors of the corporation.

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Name of Attorney: _____

Tel No.: _____

Address of Attorney: _____

SURROGATE'S COURT OF THE STATE OF NEW YORK

COUNTY OF _____

— — — — — X

PROBATE PROCEEDING,

WILL OF

a/k/a

RENUNCIATION OF LETTERS OF

ADMINISTRATION c.t.a. AND

WAIVER OF PROCESS

(SCPA 1418)

Deceased.

— — — — — X

File No. _____

The undersigned, _____, a person interested in this estate, and in all respects eligible to receive letters, hereby personally appears in this proceeding in the Surrogate's Court of _____ County and

1. Renounces all rights to Letters of Administration c.t.a..
2. Waives the issuance and service of citation in the above entitled proceeding and consents that the will dated _____, 20____ a copy of which has been received by the undersigned, be admitted to probate.
3. Consents that Letters of Administration c.t.a. be granted by the Court to _____ or any other person or persons entitled thereto without any notice whatsoever to the undersigned.
4. Consents to dispense with the bond of the Administrator c.t.a., and if such consent be filed by some but not all of the persons interested in the estate, specifically releases any claim by me under any bond that may be required of such Administrator c.t.a..

Dated

Signature

Street Address

Relationship

Print Name

Town/State/Zip

STATE OF _____)

COUNTY OF _____)

ss.:

On _____, 20 _____, before me personally appeared _____

to me known and known to me to be the person described in and who executed the foregoing waiver and consent and duly acknowledged the execution thereof.

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Name of Attorney: _____

Tel No.: _____

Address of Attorney: _____

SURROGATE'S COURT OF THE STATE OF NEW YORK

COUNTY OF _____

— — — — — X

PROBATE PROCEEDING,

WILL OF

a/k/a

AFFIDAVIT OF NO DEBT

(For use with Letters of

Administration c.t.a.)

Deceased.

— — — — — X

File No. _____

STATE OF NEW YORK _____)

COUNTY OF _____)

ss.:

_____, being duly sworn, deposes and says:

that he/she resides at _____,

County of _____, State of _____; that he/she is the person seeking

appointment as administrator c.t.a. in the above entitled proceeding; that the value of all personal property receivable by the fiduciary of the estate of the above-named decedent plus estimated gross rents receivable by said fiduciary for 18 months will not exceed the sum of \$ _____; that deponent has made a diligent search to ascertain

whether or not there are any debts or claims against the estate of said decedent and that there are no claims, including unpaid funeral and medical bills, except as follows:

[If "none", write "NONE"] _____

NAME _____ AMOUNT \$ _____

ADDRESS _____

NATURE OF CLAIM _____

NAME _____ AMOUNT \$ _____

ADDRESS _____

NATURE OF CLAIM _____

NAME _____ AMOUNT \$ _____

ADDRESS _____

NATURE OF CLAIM _____

Sworn to before me this

_____ day of _____, 20 _____

Signature

Print Name

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Name of Attorney: _____

Tel No.: _____

Address of Attorney: _____

SURROGATE'S COURT OF THE STATE OF NEW YORK
COUNTY OF

— — — — — X

PROBATE PROCEEDING,

WILL OF

a/k/a

(Note: Attach a copy of the Will/Codicil
to this Affidavit of Comparison executed
by any two persons; if a photocopy
of the Will is used, only one person
need make the affidavit.)

AFFIDAVIT OF COMPARISON

Deceased.

— — — — — X

STATE OF NEW YORK _____)

COUNTY OF _____)

File No. _____

ss.:

I/We _____ (and) _____

being duly sworn, say(s), that (he/she has) (we have) carefully compared the copy of decedent's Will/Codicil propounded
herein to which this affidavit is annexed with the original Will dated the _____ day of _____ , _____
(and the original Codicil dated the _____ day of _____ , _____), about to be filed for probate,
and that the same is in all respects a true and correct copy of said original Will/Codicil and of the whole thereof.

Sworn to before me this

_____ day of _____ , 20 _____

Signature

Print Name

Notary Public: _____

Commission Expires: _____

(Affix Notary Stamp or Seal)

Name of Attorney: _____

Tel No.: _____

Address of Attorney: _____

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